JOHN CHINYANYA
and
CHUMA ROBSON
and
SHYLET MUTUNHAIRE
and
CLEMENCE MASIMBO
and
TIMOTHY CHIRIPAGU
and
LANGTON MAGANGA
and
AGRIPA MAKWAVARARA
and
BEVERLY MOYO
and
FAITH MAKOWANGA
and
MELODY MUTOMBA
and
PERHAPS NYANGURA
and
SHUMBA KOMBORE
versus
THE AFRICAN APOSTOLIC CHURCH
and
TOWN CLERK OF CHITUNGWIZA N.O
and
MINISTER OF LOCAL GOVERNMENT

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 6 & 10 November 2025

Opposed Application

G.L. Tsikwaurere, for the applicants
J.B. Matandire, for the 1st respondent

MAMBARA J:

[1] This is a judgment on an application for condonation of the late filing of an application for rescission of a default judgment, made in terms of rule 59 read with rule 29(1) of the

High Court Rules, 2021. The twelve applicants (hereinafter collectively referred to as "the Applicants") seek leave to file their rescission application out of time. The first respondent is The African Apostolic Church, the second respondent is the Town Clerk of Chitungwiza (cited in his official capacity), and the third respondent is the Minister of Local Government (also in his official capacity). I shall refer to the three respondents collectively as "the Respondents" where appropriate. The applicants are jointly represented, as are the respondents.

[2] By way of background, the first respondent obtained a default judgment against the applicants on 11 December 2024 under High Court case number HC 1319/20. That was an application by the first respondent to evict the applicants from a piece of land in Chitungwiza, which succeeded by default after the applicants failed to file their heads of argument timeously in opposition. The failure to file heads was attributable to confusion and inaction on the part of the applicants' then legal practitioners: the applicants had actually filed a separate condonation application (Case HC 1695/24) to regularise the late heads, but their lawyers did not follow up on that application, leading to its dismissal for want of prosecution. Unaware that their condonation request had been dismissed, the applicants did not attend to the main case, and the first respondent proceeded to obtain the eviction order in their absence.

[3] The applicants only became aware of the default judgment on 23 May 2025, when they were served with a writ of execution for their eviction. They reacted promptly: on 26 May 2025 they instructed their then lawyers to file an urgent application for stay of execution and to seek rescission of the default judgment. Drafts of both the stay and rescission applications were prepared by counsel by 27 May 2025. However, owing to further mishaps by the applicants' erstwhile legal practitioners – including incorrect particulars entered into the new electronic filing system (IECMS) and miscommunications between the advocate and instructing attorneys – those applications were not filed as intended. Upon discovering that nothing had been filed, the applicants swiftly engaged a new firm of legal practitioners, who filed the present chamber application for condonation (together with the rescission application) around the end of June 2025. By the applicants' calculation, the filing was only about five days outside the 30-day period prescribed for applying for rescission. They contend that this brief delay is not inordinate and should be excused.

[4] The respondents raised a point in limine contending that there was no valid application before the court because the founding affidavit was fatally defective. The attack was directed at the commissioning of the affidavit, the complaint being that the commissioner's stamp did not disclose his designation or the capacity in which he acted as commissioner of oaths.

[5] Mr *Matandire*, for the respondents, argued that this omission rendered the affidavit void *ab initio*, and the entire application consequently a nullity. He relied on the decision of the Supreme Court in *Firstel Cellular (Pvt) Ltd* v *NetOne Cellular (Pvt) Ltd* SC 1/15, where the court held that for an affidavit to be valid, the stamp used must clearly identify the person before whom the oath is taken and the office or capacity in which he or she acts as commissioner of oaths.

Patel JA stated that:

> "What is required is that any stamp that is used to designate a commissioner of oaths should clearly identify the person before whom an affidavit is deposed and the office or capacity in which he or she acts as commissioner."

It was his submission that the omission in the present case offends this settled rule of practice, leaving the affidavit incurably defective.

[6] Counsel further referred to *Prosecutor General* v *Makarichi & Others* HH 502-23, where CHIKOWERO J, applying *Firstel Cellular*, struck off an application for forfeiture because the commissioner's office or rank was not disclosed on the affidavit. The learned judge reiterated that:

> "The person before whom the affidavit was signed must be clearly identified, as should the office or capacity in which he or she acts as commissioner of oaths. Documents which do not satisfy these legal requirements are not affidavits at all."

[7] It was also argued that I had previously followed the same principle in *Chipo Maruku* v *Katt Construction (Pvt) Ltd & Others* HH 442-24, where I held that an affidavit not properly commissioned, in that case bearing an electronically inserted date, was procedurally defective and could not be relied upon in motion proceedings. The reasoning was that affidavits must reflect a genuine act of oath-taking before a duly identified commissioner of oaths, performed contemporaneously with the deponent's signature.

[8] In reply, Ms *Tsikwaurere* for the applicants contended that the authorities cited were distinguishable. She submitted that the commissioner in the present matter had included reference to the enabling legislation under which he acted, namely the Justices of the Peace and Commissioners of Oaths Act [*Chapter 7:09*]. This, she argued, was sufficient

to establish his authority. She also sought to rely on *S* v *Deyi* [2013] ZAGPPHC 75, she contended, allowed some latitude where the identity of the commissioner could be ascertained from the stamp itself.

[9] The question before this court is therefore a narrow one: whether the failure by the commissioner to indicate his designation or office on the stamp renders the affidavit, and consequently the application, invalid.

Analysis

[10] The practice in Zimbabwe regarding the commissioning of affidavits is settled. In *Firstel Cellular* (*supra*), the Supreme Court expressly required both the identity and the *capacity* of the commissioner of oaths to appear clearly on the document. This is not a mere technicality; it is a matter going to the validity of the affidavit.

As CHIKOWERO J stated in *Makarichi* (*supra*):

> "The office of a commissioner of oaths is vital to the integrity of judicial proceedings. The commissioner must be identified, his authority ascertainable, and his role in administering the oath transparent."

[11] This approach ensures that affidavits used in court are authentic and that the oath was properly administered. It protects the court from reliance on documents whose validity is uncertain. The omission of the commissioner's designation leaves the court unable to determine whether the oath was taken before a person duly authorized under the Act.

[12] The applicants' argument that reference to the enabling legislation is sufficient cannot stand. The statute referred to creates several categories of potential commissioners—magistrates, police officers, notaries public, legal practitioners, and others. Without identifying which one the commissioner is, the court is left to speculate. This goes against the principle that jurisdictional facts for the exercise of statutory power must be clear on the face of the document.

[13] The reliance on *S* v *Deyi* (*supra*) is misplaced. That South African case turned on whether a misdescribed but identifiable police officer's stamp invalidated an affidavit.

[14] In *Maruku* v *Katt Construction* (*supra*), this very court emphasized that affidavits must be executed in the physical presence of the commissioner of oaths, who must endorse them with his identity and designation contemporaneously with signature. An affidavit lacking those elements is defective and cannot sustain proceedings.

Disposition

[15] In the present case, the stamp on the founding affidavit merely bears the name "I. S. Zenda" and the words "Commissioner of Oaths", without indicating in what capacity he holds that office—whether as a legal practitioner, police officer, magistrate or other authorized person. This omission contravenes the requirements laid down in *Firstel Cellular* and *Makarichi*.

[16] The defect is not curable by subsequent explanation or by inference. The founding affidavit is not properly commissioned, and there is therefore no valid affidavit before the court. Without a valid founding affidavit, there is no application in law.

[17] It follows that the point in limine must succeed. The application is struck off the roll. The applicants may, if so advised, file a fresh and properly commissioned application.

[18] As to costs, the respondents have been put to unnecessary expense in opposing an application which ought never to have been filed in its present form. Costs will follow the result.

In the result, it is ordered as follows;

1. The preliminary point is upheld.
2. The application for rescission of judgment is struck off the roll for want of a properly commissioned founding affidavit.
3. The applicants shall pay the respondents' costs of suit on the ordinary scale.

MAMBARA J: …….

Mangwana & Partners, applicants' legal practitioners
John Mugogo Attorneys, first respondent's legal practitioners